Changes to Legislation: as of 17 September 2026, this Act is up to date with all changes known to be in force.

Number 20 *of* 1996

TRANSNATIONAL INFORMATION AND CONSULTATION OF EMPLOYEES ACT 1996

REVISED

Updated to 18 January 2018

This Revised Act is an administrative consolidation of the *Transnational Information and Consultation of Employees Act 1996*. It is prepared by the Law Reform Commission in accordance with its function under the *Law Reform Commission Act 1975* (3/1975) to keep the law under review and to undertake revision and consolidation of statute law.

All Acts up to and including *Intoxicating Liquor (Amendment) Act 2018* (1/2018), enacted 31 January 2018, and all statutory instruments up to and including *European Communities (Seafarers) Regulations 2018* (S.I. No. 15 of 2018), made 18 January 2018, were considered in the preparation of this Revised Act.

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Number 20 *of* 1996

TRANSNATIONAL INFORMATION AND CONSULTATION OF EMPLOYEES ACT 1996

REVISED

Updated to 18 January 2018

AN ACT TO IMPLEMENT DIRECTIVE NO. 94/45 EC OF 22 SEPTEMBER, 1994 OF THE COUNCIL OF THE EUROPEAN UNION BY PROVIDING FOR THE ESTABLISHMENT OF TRANSNATIONAL ARRANGEMENTS FOR THE INFORMATION AND CONSULTATION OF EMPLOYEES IN COMMUNITY-SCALE UNDERTAKINGS AND COMMUNITY-SCALE GROUPS OF UNDERTAKINGS WHERE REQUESTED IN THE MANNER PROVIDED FOR IN THIS ACT, TO PROVIDE FOR THE ESTABLISHMENT OF EUROPEAN WORKS COUNCILS IN SUCH UNDERTAKINGS OR GROUPS OF UNDERTAKINGS UNLESS AGREEMENTS ENTERED INTO IN ACCORDANCE WITH THIS ACT PROVIDE OTHERWISE, AND TO PROVIDE FOR RELATED MATTERS. [10*th July*, 1996]

BE IT ENACTED BY THE OIREACHTAS AS FOLLOWS:

PART I

Preliminary and General

Short title.

1.—This Act may be cited as the Transnational Information and Consultation of Employees Act, 1996.

Commencement.

2.—This Act shall come into operation on such day as the Minister may by order appoint.

Interpretation.

3.—(1) In this Act, unless the context otherwise requires—

F1**[** "agency worker" means an agency worker to whom the Protection of Employees (Temporary Agency Work) Act 2012 applies; **]**

"appointed" means, in the absence of an election, appointed by employees, or appointed by management on a basis agreed with employees;

"central management" means—

(a) in the case of a Community-scale undertaking, the central management of the undertaking, and

(*b*) in the case of a Community-scale group of undertakings, the central management of the controlling undertaking,

Paragraph 2 (2) of Second Schedule.

FIRST SCHEDULE

Election of Employees' Representatives

1. An employee who is employed in the State by the relevant undertaking or group of undertakings (wherever located) on the day or days of the election for employees' representatives, shall be entitled to vote in such an election.

2. An employee who has been employed in the State by the undertaking or group of undertakings in a full-time or regular part-time capacity for a continuous period of not less than one year on the nomination day, or, in relation to a Special Negotiating Body, a trade union official or official of an excepted body, whether or not he or she is an employee, shall be eligible to stand as a candidate for election as an employees' representative provided that he or she is nominated—

(*a*) by a trade union or an excepted body which is already recognised by the business units of the undertaking or group of undertakings located in the State for collective bargaining or information and consultation purposes, or

(*b*) by at least two employees.

3. Where the number of candidates on the nomination day exceeds the number of employees' representatives to be elected to the Special Negotiating Body or a European Works Council, or in connection with an arrangement for the information and consultation of employees, a poll shall be taken by the returning officer and voting in the poll shall take place by secret ballot on a day or days to be decided by the returning officer and according to the principle of proportional representation.

4. The central management in consultation with existing employee representatives shall appoint a returning officer whose duties shall include the organisation and conduct of nominations and elections and that officer may authorise other persons to assist in the performance of the duties of returning officer.

5. The returning officer shall perform his or her duties in a fair and reasonable manner and in the interests of an orderly and proper conduct of nomination and election procedures.

6. The cost of the nomination and election procedure shall be borne by the central management.

Section 13 (1).

SECOND SCHEDULE

Subsidiary Requirements: European Works Council

Competence.

1. F41**[**(1) The competence of the European Works Council (in this Schedule referred to as 'the Council') shall be determined in accordance with section 8(5), whether the central management is located within the Community or elsewhere.**]**

F41**[**(2) The information to the Council shall relate in particular to the structure, economic and financial situation, probable development and production and sales of the Community-scale undertaking or group of undertakings.**]**

F42**[**(3) The information to and consultation with the Council shall relate in particular to—

(*a*) the situation and probable trend of employment,

(*b*) investments, and